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July 18 2025

Workforce Appeals Board
P.O. Box 45244
Salt Lake City, UT 84145-0244
Re: **Appeal of ALJ Decision**
Case No. 25-A-05051 (Golub v. Granite School District)

Madam Chair and Members of the Board:

I write in further support of my timely appeal from the Administrative Law Judge's 9 July 2025 decision denying unemployment-insurance benefits under Utah Code § 35A-4-405(1). For the reasons that follow, the decision is infected by reversible legal error and clearly erroneous fact-finding. The proper remedy is reversal with benefits allowed for the week ending 18 May 2025 or, at minimum, a de-novo remand.

I. Procedural Posture

The Board acknowledged my appeal on 11 July 2025 and invited written argument within 15 days. This memorandum therefore arrives well within the window prescribed by Utah Code § 35A-4-406(3) and Utah Admin. R994-508-304.

II. Statement of Facts (Record Citations in Brackets)

1. **May 5, 2025 — Account Deactivation and Police Interrogation.** While covering a first-grade dance class at **Taylorsville Elementary (Granite SD)**, the principal summoned law-enforcement officers—including a K-9 unit—after accusing me of smoking cannabis on campus. The officer detected no odor and took no action, yet Granite immediately **disabled my Frontline scheduling account**, the only portal through which substitutes accept work [Exh. E1, Employer log].

2. **Immediate Protest.** I immediately emailed Associate Directors Wyatt Bentley and Brenda Byrnes demanding reinstatement and protesting the false allegation. Granite did not respond for eight days. (*NB all references to email correspondence are approximate, as the Granite School District never reversed the deactivated my Granite District email—peter.golub@graniteschools.org.*)

3. **May 13 emails.** When Granite finally replied, Mr. Bentley raised an unrelated classroom-management issue from April. I tried to make it clear that I needed to continue working for Granite and had even invested my own time to compose a document that would help the district address its troubling lack of academic rigor and pedagogical procedure. I remained ready to work once my account was restored and concluded, "I don't want to waste any more of your time,"—a phrase the ALJ later mischaracterized as a resignation. I needed and wanted to get back to work and hoped that by staying in the district I could be part of the small cadre of teachers who believed that assigning students AI tutors we could remedy failing test scores, drop out rates, and lack of student participation.

4. **May 15 Phone Call & Email Shutdown.** When a meeting was finally schedules, Mr. Bentley failed to contact me on the correct date, instead calling me on a different day and time. When he finally contacted me on the scheduled time, I'd intended to discuss AI-literacy curricula. Mr. Bentley addressed neither these concerns nor the May 5 incident. Within hours Granite permanently closed my district email account and cut off all communication.

5. **July 8 Hearing Concession.** At **46:26** of the certified audio recording, the ALJ halted my cross-examination, noting that Mr. Bentley "already said he doesn't remember exactly what you said" i.e. Mr. Bentley admits I never said "I quit" or anything of that nature. This on-the-record admission undercuts the decision's finding that I verbally quit [Hearing Audio, 46:26-46:40].

6. **Unemployment Claim.** I filed for benefits effective 18 May 2025 and have filed weekly claims and more than thirty job applications while awaiting a determination.

III. Grounds for Reversal

1. **Employer-Initiated Separation Under Governing Rule.** Utah Admin. Code **R994-405-201** states: "*A separation is a discharge if the employer was the moving party in determining the date the employment ended.*" By locking me out of Frontline and deactivating every credential, Granite made further work impossible—an involuntary discharge, not a quit. See also *Clearfield City v. Dep't of Emp't Sec.*, 663 P.2d 440, 445 (Utah 1983) (benefits may be denied only where employee's fault justifies termination).

2. **No Showing of Culpability, Knowledge, or Control.** The Department's three-factor test for "just cause" (culpability, knowledge, control), upheld in *Kehl v. Bd. of Review of the Indus. Comm'n*, 700 P.2d 1129, 1135 (Utah 1985), requires evidence that the claimant knowingly violated a reasonable rule. Granite offered none. Its own witness could not recall my alleged resignation, and the ALJ acknowledged that gap.

3. **Burden Misallocated.** R994-405-105 places the initial burden on the employer to prove a voluntary quit. By forcing me to *disprove* a quit, the ALJ inverted the rule, warranting reversal.

4. **Reliance on Undisclosed Evidence.** The decision quotes internal Granite emails that were never provided after my accounts were shut down. R994-508-118 forbids reliance on undisclosed exhibits absent a written good-cause finding, which is absent. In other words, they have all the written evidence without sharing it with the side of the appellant.

5. **Findings Contrary to the Record.** The ALJ simultaneously found that Granite "had not decided to discharge" me yet admitted my accounts were disabled. Those findings cannot coexist. Moreover, the supposed statement "I don't plan to work for the District" appears nowhere; the only direct evidence is Mr. Bentley's memory lapse at 46:26 of the recording.

6. **Equity-and-Good-Conscience Ignored.** Even if the Board classifies the separation as a quit, R994-405-103 mandates an equity-and-good-conscience analysis. I filed timely claims, searched diligently for work, and remain attached to the labor market—the precise behavior the rule protects.

7. **Retaliatory Hostile Environment.** The May 5 incident, followed by instant deactivation of my credentials, created an intolerable work environment satisfying any constructive-discharge standard. Even if the Board finds reasonable suspicion existed on May 5, Granite's own Policy IX.A.1.b § D demands that any test be 'conducted … by a laboratory certified for employment drug and alcohol testing.' The principal instead insisted on an immediate blood draw in a grade-school hallway—conduct expressly forbidden by both the policy and Utah Code § 34-38-6. Under R994-405-202(2)(b) a claimant who resists an unlawful directive is not disqualified from benefits; therefore, my objection to an on-the-spot blood draw cannot constitute "fault" under § 35A-4-405(2)."

IV. Relief Requested

- **Reverse** the ALJ and allow benefits beginning the week ending 18 May 2025; or
- **Remand** for a de-novo hearing with instructions to:

  1. Order Granite to produce all emails dated 1-15 May 2025 referencing my employment.
  2. Subpoena the Taylorsville Elementary principal and responding officer regarding the May 5 K-9 incident.
  3. **Authenticate the July 8 recording and certify that no ALJ log exists,** consistent with the Appeals Unit's representation that "there are no notes from the ALJ."

Respectfully submitted,
/s/ Peter Golub
Appellant-Claimant

Other documents included with submission

• ALJ Decision (9 July 2025)
• Board Acknowledgment of Appeal (11 July 2025)
• Exhibits (5 May 2025)
• Sworn Declaration of Peter Golub (executed 18 July 2025)
• Certified Hearing Audio (MP3)

DECLARATION OF PETER GOLUB
Utah Code § 78B-5-705 – Unsworn Declaration
State of Utah, Salt Lake County

I, **Peter Golub**, declare under penalty of perjury that the following statements are true and based upon my personal knowledge:

1. **Identity.** I am the appellant-claimant in Workforce Appeals Board Case No. 25-B-00327. I reside at 3921 S 2000 E, Holladay, Utah 84124.
2. **Assignment on 5 May 2025.** On the morning of 5 May 2025, I accepted a same-day substitute-teacher assignment through Granite School District's Frontline portal to teach at **Taylorsville Elementary School**. I put on the three-piece suit that is my typical attire for teaching, though I often leave the jacket in the car, so that the day of the incident I was dressed in a pressed dress shirt, tie, waistcoat, pressed slacks, and classic black Florsheim wingtips.
3. **Lack of Class Materials.** Upon arrival the main office provided no roster or schedule, so that I knew neither when classes began or ended nor who was supposed to be in my class. After I'd complained about this multiple times, a secretary handed me a sticky note that listed times for an unrelated class (and for the wrong year). I informed office staff that the absence of a roll and schedule made it impossible for me to plan classes and verify which students belonged in the room.
4. **Unsanitary Classroom Conditions.** When I entered the dance room a strong odor and industrial cleaner was present. During first period, there was also a strong odor of feces. I mentioned the smell to a passing teacher and suggested discreetly checking if any child needed a change of clothes. I declined to spray Lysol disinfectant while children were present as this is harmful to health.
5. **Noise Complaint & My Response.** Another teacher complained about music volume. Because dance requires audible music, I reduced the level but explained that dancing is a loud activity and that perhaps the school could hold its dance classes either in or near the gym which looked empty when I went and checked in the hope of moving the class.
6. **Police and K-9 Intervention.** After the first period, the principal and vice-principal entered with a uniformed police officer and a K-9 unit outside my window. The officer stated he detected no odor of marijuana. I cooperated fully and answered all questions. The charge was that I had been smoking marijuana in the class of first-graders. The claim was so incredible, I admit I was at a loss of what to say, except that what kind of a lunatic would smoke marijuana inside a elementary school class. When I said the class smelled like feces, the vice-principal told me that this was exactly what marijuana smelled like, which she knew as she'd been inside a junior high school boy's bathroom. Again, I was left speechless.
7. **Principal's Demand for a Blood Test.** Before students were to return from lunch the principal returned to my class for a third time and demanded that I submit to an immediate drug test on site. By this point, I was so shocked and humiliated, I packed my belongings, left the building. The only thing crazier than accusing me of consuming cannabis on school property is the demand that I submit a blood test.
8. **Account Deactivation.** That evening, when I attempted to pick up another assignment, Frontline displayed an error message (Exhibit A), informing me that my account had been deactivated. I emailed Granite immediately describing the shocking treatment I had received and requested that my account be reactivated. Then on 10 May 2025 Granite's system

e-mailed my personal Gmail account confirming that *all* district credentials had been deactivated (Exhibit B).

9. **Continued Desire to Work.** At no time did I resign, quit, or indicate an intention to quit. Between 5 May and 13 May 2025, I sent multiple emails to Associate Directors Wyatt Bentley and Brenda Byrnes requesting reinstatement. Granite ignored those messages until 13 May 2025.
10. **Impact on Employment.** Because Frontline is the sole platform for accepting substitute work, deactivation rendered continued employment impossible. I remained willing and available to work but was technologically barred from doing so.
11. **Authenticity.** Attached as exhibits are a screenshot of the Frontline error message (Exhibit A) and the 10 May 2025 deactivation e-mail (Exhibit B).

I declare under penalty of perjury under the laws of the State of Utah that the foregoing is true and correct.

Executed on **18 July 2025**, at Holladay, Utah.

Peter Golub

Exhibit A: *Shows Frontline page Mr. Golub saw starting May 5, 2025*

On the evening of May 5, when Mr. Golub tried to log into his Absence Management account to reserve the next day's job, he was denied access and instead met with the following message:

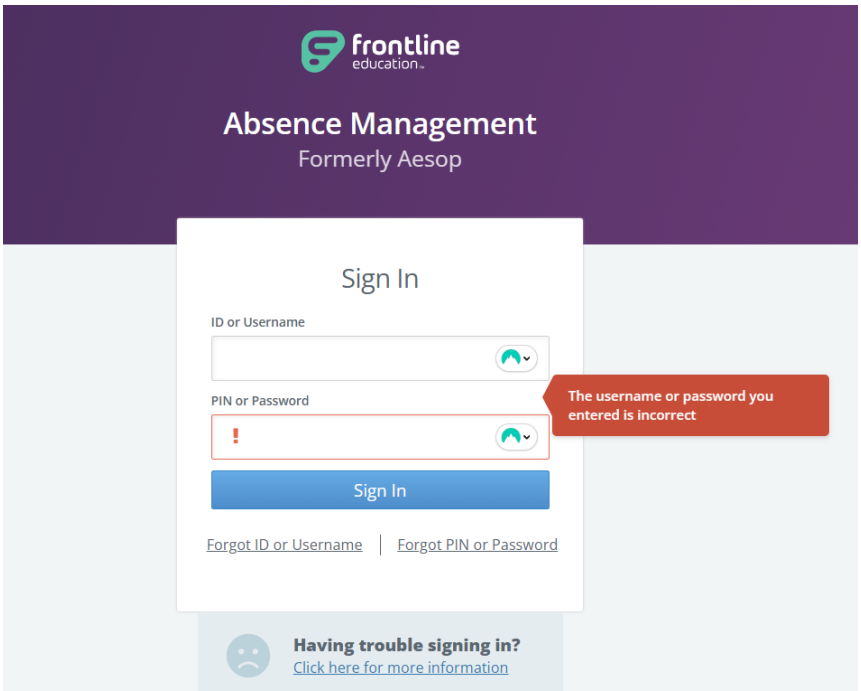

Exhibit B: *Shows the deactivation of Mr. Golub's Granite School District Account on May 10*

n.b. Although the reason for the deactivation is given as "inactive," Mr. Golub had been using the Granite School District system up until his access was deactivated on May 5, 2025.

Your application for graniteschools has been deactivated Inbox ×

AppliTrack Mailbot <mailbot@applitrack.com> Sat, May 10, 3:49 AM

to me

Your application has been marked as inactive in our records. This is a normal process that occurs annually to ensure that our application files contain only active candidates.

If you would still like to be considered for future openings, please use the "Log In" link on our application web site and enter your password when prompted. Then, update any required information, and re-submit your application using the "Finish & Submit" button at the bottom, then clicking on Submit Application. By doing this, you will automatically be reactivated in our files.

Thank you for your continuing interest in Granite School District.

-Online application mailbot

UTAH DEPT OF WORKFORCE SERVICES
UI DIVISION
140 EAST 300 SOUTH
PO BOX 45266
SALT LAKE CITY, UT 84145-0266

Utah Department of Workforce Services
Unemployment Insurance
Decision of Eligibility for Unemployment Insurance Benefits

ELECTRONIC: 06/17/2025

VQDW

PETER GOLUB
3921 S 2000 E
HOLLADAY, UT 84124-1730

SSN: xxx-xx-2127
EMPLOYER: GRANITE SCHOOL DISTRICT

Notice: This decision is made on your claim for benefits:

You voluntarily left your job because you were dissatisfied with working conditions.

You did not establish good cause for leaving by showing that staying in this job would cause sufficient hardship to make it necessary for you to quit before finding another job or that you had no reasonable alternative to quitting.

Benefits cannot be allowed under the equity and good conscience provision because you have not shown that your reasons for leaving were sufficiently mitigating and/or you have not demonstrated a continuing attachment to the labor force.

Benefits are denied under Section 35A-4-405(1) of the Utah Employment Security Act beginning 05/18/2025 and ending when you have earned wages in bona fide covered employment equal to at least six times your weekly benefit amount and you are otherwise eligible. To reopen your claim, you can file online at jobs.utah.gov, click on "Sign In" and "My Unemployment", or you can call the UI Claims Center. This reopening will be effective as of the week you reopen your claim. You will be notified separately of any other issues on your claim.

RIGHT TO APPEAL: You may appeal if you believe this decision is incorrect. Your written appeal must be submitted online, faxed, postmarked (or otherwise delivered) on or before 07/02/2025. An appeal submitted after the deadline may be considered if you can show good cause for filing late. A copy of your appeal will be sent to other interested parties. For more information about the appeals process go to jobs.utah.gov/appeals. Your written appeal must be signed by you or your legal representative and include 1) your name and current mailing address, 2) your Social Security number, 3) the date 4) your statement of appeal. It is important to continue filing your weekly claims while the appeal process is pending. You will not be paid for any week not filed timely, unless you can show good cause for filing late.

Appeal online:	Appeal by fax:	Appeal by mail:
jobs.utah.gov/appeals	(801) 526-9242	Appeals Unit, PO Box 45244, Salt Lake City, UT, 84145-0244

UI CLAIMS CENTER PHONE NUMBERS: S.L.: 801-526-4400, Ogden: 801-612-0877, Provo: 801-375-4067, Out of Area: 888-848-0688. APPEALS PHONE NUMBER: S.L.: 801-526-9300, Toll Free: 877-800-0671.

REPR.: H Shuman

EMP.#: 100002347

Doc ID: 38895261 PID: 080-120-588

DO NOT WRITE BELOW THIS LINE

DWS-UI Form 615J - Rev 2/24

IMPORTANT! This document(s) contains important information about your unemployment compensation rights, responsibilities and/or benefits. It is critical that you understand the information in this document.

DEADLINE FOR APPEAL: If you disagree with this determination or decision, you must file an appeal before the deadline noted in this document.

IMMEDIATELY: If needed, call 801-526-4400 or 888-848-0688 for assistance in the translation and understanding of the information in the document(s) you have received.

¡IMPORTANTE! Este documento(s) contiene información importante sobre sus derechos, obligaciones y/o beneficios de compensación por desempleo. Es muy importante que usted entienda la información contenida en este documento.

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UTAH DEPT OF WORKFORCE SERVICES
UI DIVISION
140 EAST 300 SOUTH
PO BOX 45277
SALT LAKE CITY, UT 84145-0277

Utah Department of Workforce Services
Unemployment Insurance
Notice of Monetary Determination

ELECTRONIC: 5/28/2025

SSN: xxx-xx-2127

Claim Effective Date:
05/18/2025

PETER GOLUB
3921 S 2000 E
HOLLADAY, UT 84124-1730

BENEFIT AMOUNT

WEEKLY AMOUNT	TOTAL WEEKS	MAXIMUM PAYABLE
$469.00	**13**	**$6,097.00**

To receive these benefits, you must also meet eligibility requirements.

Your benefit amount is based on wages reported by your employer(s) from 01/01/2024 through 12/31/2024. Examine the wages reported below. Contact Unemployment Insurance (UI) immediately if there are any errors.

ERRORS OR MISSING WAGES MAY REDUCE YOUR BENEFITS OR PREVENT YOU FROM QUALIFYING.

Benefit calculation information can be found at https://jobs.utah.gov/ui/UIShared/PDFs/BenefitCalculation.pdf

You may receive the benefit amount shown if you meet all other requirements. You may not receive benefits if you are disqualified due to job separation or other eligibility issues. See your *Claimant Guide* for more information about eligibility issues.

EMPLOYER NAME	QTR 1/2024	QTR 2/2024	QTR 3/2024	QTR 4/2024	TOTAL	DEPT USE
GRANITE SCHOOL DISTRICT	$12,342	$11,105	$0	$0	$23,447	910258-0
UNIVERSITY OF UTAH	$0	$0	$630	$0	$630	910004-0
REGULAR BASE TOTALS	$12,342	$11,105	$630	$0	$24,077	

Any wages marked with an "*" will not be used in the benefit determination.

RIGHT TO PROTEST: If the wages or employers shown are incomplete or incorrect, you may provide information by mail to: Utah Department of Workforce Services, CO Claims, P.O. Box 45277, Salt Lake City, UT 84145-0277, call 801-526-4400, or fax 801-526-9394. Please do not send a cover sheet. Please include your social security number and any proof of wages such as check stubs. Continue to file your weekly claims. Failure to do so could result in a denial of benefits even if you are otherwise eligible.

TIME LIMITATION: You may lose your right to add wages or make changes to this determination if you do not provide this information to Workforce Services by **6/12/2025.** If you are determined to be monetarily ineligible for benefits and you have employment and wages in another state where you have worked, you may be be eligible for benefits in that state(s). To file a claim, you will need to contact the other state(s) where you worked.

Resources for Unemployed Workers

Online Job Listings and Job Search Assistance

Search for job openings at https://jobs.utah.gov/jobseeker. New listings are added daily. View tips for finding and keeping a job in our SmartStart guide: https://jobs.utah.gov/jobseeker/smartstart.pdf.

DWS offers free workshops to help you find a new job. Visit https://jobs.utah.gov/jobseeker/workshops to view the online workshops or sign-up to attend in-person.

Educational Opportunities and PELL Grant Scholarships

You may be eligible for educational assistance. DWS Training Services or Federal Pell Grant scholarships are based on financial need and other factors. Scholarships may be used for education and training expenses. Pell Grant information is available at https://studentaid.ed.gov/sa/.

You may be able to receive Unemployment Insurance (UI) benefits while attending school. Apply online by logging into your jobs.utah.gov Job Search account. Then click on **Apply for Training Services**. You may also apply in-person at your closest Employment Center.

Veteran Services

DWS helps veterans find careers after their military service. Visit http://jobs.utah.gov/jobseeker/veteran.html to access resources for educational opportunities, careers and other veteran benefits.

Child Care

The Kids In Care program may be able to help you with childcare while you search for a job. For more information call (801)326-4399 or visit www.cssutah.org.

To search for licensed childcare providers in your area visit https://careaboutchildcare.utah.gov or call (855) 531-2468. Hours of operation, ages accepted, vacancies and more are available online.

Health Insurance Payment Assistance

For information regarding the Affordable Care Act, please visit www.healthcare.gov

Utah's Premium Partnership for Health Insurance (UPP) may help you pay for health insurance you receive from an employer. UPP may also help pay for COBRA coverage. Receive up to $150 per adult and $120 per child each month to help cover the cost of your premium. For more information, call toll-free (888) 222-2542 or visit www.health.utah.gov/upp.

Utah Medicaid and the Children's Health Insurance Program (CHIP) cover medical expenses for qualifying Utah residents. You or your family members may be eligible for Medicaid or CHIP. To learn more, please visit: https://medicaid.utah.gov/

Mortgage Assistance

The Making Home Affordable (MHA) program helps homeowners obtain mortgage relief and avoid foreclosure. Unemployed homeowners may temporarily reduce or suspend mortgage payments. For information, call toll-free (888) 995-HOPE (4673) or visit www.makinghomeaffordable.gov.

Supportive Services

If you need temporary assistance, such as Food Stamps or medical care, apply online at http://jobs.utah.gov/mycase. You may also visit your nearest Employment Center.

Additional Services

Utah 2-1-1 is a free, confidential tool that connects you with state and community services. To search by need, by group or by provider, call toll-free (888) 826-9790 or visit www.uw.org/211.

UTAH DEPT OF WORKFORCE SERVICES
UI DIVISION
140 EAST 300 SOUTH
PO BOX 45266
SALT LAKE CITY, UT 84145-0266

Utah Department of Workforce Services
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Decision of Eligibility for Unemployment Insurance Benefits

ELECTRONIC: 06/17/2025

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PETER GOLUB
3921 S 2000 E
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